

IN THE HONOURABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA,
SITTING IN ITS MARCH TERM, A. D. 2025.

BEFORE HER HONOR: SIE-A-NYENE G. YUOH CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE ... ASSOCIATE JUSTICE
BEFORE HIS HONOR : YUSSIF D. KABA ASSOCIATE JUSTICE
BEFORE HIS HONOR : YAMIE QUIQUI GBEISAY, SR.... ASSOCIATE JUSTICE
BEFORE HER HONOR: CEANEH D. CLINTON-JOHNSON.....ASSOCIATE JUSTICE

Ujay Morris, Administrator of the Intestate)
Estate of Gballah Morris..... Appellant)
Versus)
Jammel T. Mulbah all of Bushrod Island,)
Republic of Liberia Appellee)
Appeal

GROWING OUT OF THE CASE:

Ujay Morris, Administrator of the Intestate)
Estate of Gballah Morris Petitioner)
Versus)
Jammel T. Mulbah all of Bushrod Island,)
Republic of Liberia Respondent)
Summary Proceeding

GROWING OUT OF THE CASE:

Ujay Morris, Administrator of the Intestate)
Estate of Gballah Morris Movant)
Versus)
Jammel T. Mulbah all of Bushrod Island,)
Republic of Liberia Respondent)
Motion to Intervene

Heard: April 16, 2025

Decided: August 14, 2025

MR. JUSTICE KABA DELIVERED THE OPINION OF THE COURT

The appellee, Madam Jammel T. Mulbah, filed an action of Summary Proceeding to Recover Possession of Real Property against Naomi Toe, Patrick Corvel, Princess, Murphy B. Toe, James B. Toe, Mulbah Jusu, Finnie Toe, Garma Kokolo, and others before the Bushrod Magisterial Court. The trial was held, and a ruling was entered against the defendants, who announced an appeal. The defendants failed to perfect the appeal, and the court proceeded to enforce the judgment against them. Subsequently, the appellant herein, Ujay Morris, claiming to be the administrator of the Intestate Estate of Gballah Morris, filed a motion to intervene before the Magisterial Court. The magistrate heard and denied

the motion on the grounds that the motion was filed untimely, meaning it was filed after the judgment had been executed. The appellant entered exceptions to and announced an appeal from the said final ruling.

Thereafter, the appellant filed Summary Proceedings before the Sixth Judicial Circuit, Civil Law Court, arguing that the appellant is the administrator of the Intestate Estate of Gballah Morris and that the property for which the appellee initiated the Summary Proceedings to Recover Possession of Real Property before the magisterial court is part of the estate managed by the appellant; that the appellant needed to defend the estate and therefore requested to be made a party defendant to intervene on behalf of the defendants; that the magistrate heard and denied the motion to intervene. The appellant further stated that the denial of the motion affects the appellant's rights and interests.

The circuit judge held a conference, during which the judge ordered the issuance of a writ of summons, and the appellee was instructed to file its responsive pleadings. The appellee submitted seven counts in response to the Summary Proceedings. In its responses, among other things, the appellee stated that the magistrate denied the motion to intervene because it was filed untimely; that the matter was *res judicata* because the magistrate delivered a final judgment and possess the appellee of the property; that there was no legal basis to grant the appellant's motion to intervene since the main action has been concluded, appeal therefrom granted, and the defendants failed to perfect the appeal; that when the magistrate denied the appellant's intervention, the appellant filed exceptions and announced an appeal but did not perfect it, instead opting for summary proceedings, which cannot be used to reverse the magistrate's decision, even if the magistrate erred in denying the motion to intervene. The appellee, therefore, requested that the case be remanded to the magistrate court for enforcement of the judgment.

The records show that after the hearing of the Petition for Summary Proceedings and the returns thereto, the trial judge ruled denying the appellant's summary proceedings on the grounds that a denial of a motion to intervene is appealable. The circuit judge also held that a motion to

intervene was not the appropriate remedy available to the appellant since the matter was already decided by the magistrate and judgment enforced against the original defendants in the Summary Proceedings to Recover Possession of Real Property suit. The appellant, still aggrieved by the circuit judge's ruling, entered an exception and announced an appeal to this Court of last resort.

In the appellant five counts bill of exceptions, the appellant contends that the circuit judge erred in affirming the denial of its motion to intervene by the magistrate; and that the circuit judge also erred when he considered the magistrate's denial ruling on the appellant's motion to intervene as final judgment instead of treating the same as interlocutory; and that the trial judge should have consider the summary proceedings filed against the said magistrate as a remedial process to correct the error of the magistrate's ruling on the motion to intervene.

Considering the arguments of the parties, this Court addressed two issues that were determinative of this controversy. They are:

1. Is the denial of a motion to intervene final and therefore appealable?
2. When does the law permit a motion to intervene to be filed in a given matter?

We answer the first issue in the affirmative. A motion to intervene, if denied, is not an interlocutory ruling because such a ruling results in a finality of interest for the party seeking to intervene, and that party cannot continue to participate in the ongoing dispute. It is the law that the denial of a motion to intervene constitutes a final judgment and is appealable. *Cole v. His Honor Wah et al, Supreme Court Opinion, October Term, 2013.*

The records show that after the matter was concluded and closed before the magistrate's court due to the defendants' failure to perfect their appeal, and following the enforcement of the magistrate's ruling on February 27, 2023, the appellant filed a motion to intervene, claiming an interest in the matter nearly one month after enforcement. The magistrate denied the motion as untimely; the appellant then entered exceptions and announced an appeal. Instead of properly perfecting its appeal for appellate review, the

appellant proceeded with summary proceedings before the circuit court. The circuit court denied these proceedings and affirmed the magistrate's ruling. This Court agrees with the circuit judge that a denial of a motion to intervene is appealable because it finalizes the intervener's participation in the main suit. Summary proceedings before the circuit court aim to review interlocutory rulings made by a magistrate that do not bring finality to the controversy. Such proceedings are typically in the form of a remedial process. The records show that when the magistrate denied the motion to intervene, the appellant entered exceptions and announced an appeal. The magistrate's denial of the motion to intervene is conclusive relative to the appellant's participation in this matter; hence, the only remedy available to the appellant was to perfect their appeal, not to pursue summary proceedings. In the case *Cooper et al v Cooper Estate et al*, 39 LLR 750, 758 (1999), this Court held that "While ordinarily the ruling on a motion to intervene is an interlocutory ruling, and the remedy available to the party aggrieved by such ruling is generally a remedial process instead of an appeal, when the ruling disposes of the crux of the dispute, it is deemed final and subject to review by the Supreme Court on appeal." (*LPMC v N'tnl Seamen's Port*, 33 LLR 132, 134 (1985)). A motion to intervene is a separate proceeding from the main suit, and if denied, the proceeding ends unless an appeal is filed. In this case, the ruling on the motion to intervene effectively resolved the core issues of the matter. The circuit judge was justified in upholding the magistrate's ruling on this point, and it should not be disturbed.

Regarding the second issue of when does the law allows a motion to intervene to be filed in a case; it is law that intervention is the process by which a third person, not originally a party to the suit but claiming an interest in the subject matter, enters the case to protect their rights or to assert their claim. *Ramatrielle v Metzger et al.*, 38 LLR 336, 347 (1997). This Court says that a motion to intervene should be filed while the matter is still pending trial and not after it has been concluded and a final judgment has been enforced. Civil Procedure Law Rev. Code 1:5.61(2). Records show that on September 3, 2022, the appellee, Madam Jammel T. Mulbah, instituted an action for Summary Proceeding to Recover Possession of Real Property against Naomi Toe, Patrick Corvel, Princess, Murphy B. Toe,

James B. Toe, Mulbah Jusu, Finnie Toe, Garmar Kokolo, and others before the Bushrod Magisterial Court. On January 9, 2023, after reviewing the claims and counterclaims of the parties, the magistrate ruled against the defendants and ordered their eviction from the appellee's property. The defendants entered exceptions to and announced an appeal therefrom; however, their failure to properly perfect the appeal led to the issuance of a writ of possession on January 31, 2023, resulting in their eviction. Nearly two months after the enforcement of the final judgment, the appellant filed a motion to intervene. A motion to intervene filed after final judgment has been entered and enforced cannot be sustained by a court, regardless of its merit. The trial court was within the pale of the law when it affirmed the magisterial court's denial of the appellants' motion to intervene since final ruling was entered in the summary ejectment action and the ruling enforced. Thus, the circuit judge did not err in confirming the ruling denying the appellant's motion to intervene. This opinion does not decide the appellant's rights regarding the disputed property; the appellant remains free to pursue proper remedies to protect any rights he may have in connection with the property.

The motion to intervene filed by Counsellor Thompson N. Jargba, was done in bad faith and with the sole intent to delay, frustrates and defeats the ends of justice; thereby constituting the violation of the Code of Moral and Professional Ethics for lawyers. Hence, Counsellor Thompson N. Jargba is hereby fined the amount of United States Two Hundred (US\$200.00) to be paid within 72 hours as of the rendition of this Judgment.

WHEREFORE AND IN VIEW OF THE FOREGOING, the final ruling of the Sixth Judicial Circuit, Civil Law Court, Montserrado County is hereby affirmed. The Clerk of this Court is ordered to send a Mandate to the court below commanding the judge presiding therein to resume jurisdiction over this case and enforce the Judgment of this Opinion. Costs are ruled against the appellant. AND IT IS HEREBY SO ORDERED.

WHEN THIS CASE WAS CALLED FOR HEARING, COUNSELLOR THOMPSON N. JARGBA APPEARED FOR THE APPELLANT. COUNSELLOR GERALD G. APPLETON APPEARED FOR THE APPELLEE.